General Terms and Conditions

Age Care Technologies Ltd®

IMPORTANT READ CAREFULLY:

Age Care Technologies Limited® for the purpose of this agreement may also be known as ACT®.

These terms and conditions apply to the use of computer software, materials, associated media, anonymised data and documents, both printed and electronic, as further defined in the relevant Licence ("Product" or "Products") property of Age Care Technologies Ltd® (“ACT®”/”we”/”us”) and its licensors.

This General Terms and Conditions ("**Agreement**") constitute a binding legal agreement between ACT® and you, either an individual, organisation, or entity duly authorised by ACT® or an ACT® Partner, by virtue of a Licence, to access and use any of the Products ("**the Authorised User**”).

BY ACCESSING, USING, RECEIVING OR INSTALLING ANY PRODUCT, THE AUTHORISED USER IS CONSENTING TO BE BOUND BY AND BECOMING A PARTY TO THIS AGREEMENT IN FULL. ACT® ALLOWS YOUR USE OF THE PRODUCTS ONLY ON THE CONDITION THAT YOU ACCEPT ALL OF THE TERMS AND CONDITIONS CONTAINED IN THIS AGREEMENT. YOU ARE DEEMED TO HAVE READ, UNDERSTOOD AND ACCEPTED ALL SUCH TERMS AND CONDITIONS UPON ACCESING, INSTALLING OR OTHERWISE USING ANY PRODUCT.

THIS AGREEMENT IS COMPLEMENTARY TO THE LICENCE BY WHICH YOU HAVE BECOME AN AUTHORISED USER AND FORMS AN INTEGRAL UNALIENABLE PART OF IT.

No party acquires any intellectual property rights under these T&Cs, except the limited rights necessary to use the ACT Assess & Connect tool:

ACT® Assess: The only globally validated method (based on 30 years of

international research) which helps older people report concerns about the top 56 threats to independence and wellbeing in old age.

ACT® Connect: Five automated channels which provide older people with access to personalised support:

- ACT® Directories of Local Services
- ACT® Directory of Carer Services.
- ACT® Social Networking.
- ACT® Information Resources.
- ACT® Escalation Protocols.

ACT® Report: A summary report for the older person with a copy for their health records of concerns, priorities, sources of support, carer support services, information resources and social networking, and significant risks.

ACT® Insight: Analysis and reporting of unique data to inform policy, service, and product development for ageing populations.

The Products are copyrighted, and ACT® claims all exclusive rights to such Products, except as licensed to Authorised Users under the relevant Licence and subject to strict compliance with the terms of this Agreement.

Access to the Products is intended for the use of the Authorised User only. Redistribution to any third-party, even if associated in any way to the Authorised User, is not allowed.

Capitalised phrases not otherwise defined in this Agreement, shall have the meaning attributed to them in the relevant Licence granted to the Authorised User.

1. AUTHORISED USE:

Research Licence: If the Authorised User has been granted a Research Licence, the Authorised User may only use the Products in connection to the identified Project and to contribute expertise, network and know-how, with a view to identifying potentially useful settings and applications of the Products for further evaluation and development. ACT® grants to the Authorised User a limited, non-exclusive, non-transferable, and non-sublicensable licence for the purpose of the

above identified authorised use, subject to the specific terms of the relevant Research Licence.

Commercial Partner Licence: If the Authorised User has been granted a Commercial Licence as a Partner of ACT®, the Authorised User may only use the Products to promote, publish and sell them within the identified Territory, during the Term, and for any other purposes expressly identified in the corresponding Commercial Licence. ACT® grants to the Authorised User a limited, non-transferable licence for the purpose of the above identified authorised use, subject to the specific terms of the relevant Commercial Licence.

Commercial End-User Licence: If the Authorised User has been granted a Commercial Licence, either directly from ACT® or from an ACT® Partner, as a Customer of ACT®, the Authorised User may only use the Products for the purpose of conducting and in connection with their identified Business. ACT® grants to the Authorised User a limited, non-exclusive, non-transferable, and non-sublicensable licence for the purpose of the above identified authorised use, subject to the specific terms of the relevant Commercial Licence.

Unauthorised Use: The Authorised User must only use the Products for the purposes authorised by this Agreement. USE BY THE AUTHORISED USER OUTSIDE OF THE SCOPE OF THE AUTHORISED USE OF THEIR RELEVANT LICENCE AND/OR AFTER EXPIRATION OF THE TERM FOR WHICH THE LICENCE HAS BEEN GRANTED SHALL BE DEEMED AN INFRINGEMENT OF ACT®'S INTELLECTUAL PROPERTY RIGHTS, INCLUDING BUT NOT LIMITED TO COPYRIGHT INFRINGEMENT.

Rights and Title: Except for the rights granted in the authorised use Licences mentioned above, all rights in the Products are reserved to ACT® and its licensors. No Intellectual Property rights on the Products are assigned or transferred by virtue of this Agreement or any Licences granted to the Authorised User.

Support and Updates: This Agreement does not grant the Authorised User any right to technical support of any kind, bug fixes, or any enhancement or update, or to any extension of time protected Products. Such additional services may be purchased separately from ACT® or an ACT® Partner and are subject to further terms and conditions. This Agreement applies to any updates or extensions of

time protected Products which may be supplied to the Authorised User by ACT® or an ACT® Partner.

2. RESTRICTIONS:

Content Use and Copying: The Authorised User may make backup copies of the Products as may be necessary for its lawful use. The Authorised User shall record the number and location of all copies of any Products and take steps to prevent unauthorised copying.

Except as expressly stated above, the Authorised User has no right (and shall not permit any third party) to copy, adapt, reverse engineer, decompile, disassemble, modify, adapt or make error corrections to the Products in whole or in part except to the extent that any reduction of the Products to human readable form (whether by reverse engineering, decompilation or disassembly) is necessary for the purposes of integrating the operation of the Products with the operation of other software or systems used by Authorised User, unless ACT® is prepared to carry out such action at a reasonable commercial fee or has provided the information necessary to achieve such integration within a reasonable period, and the Authorised User shall request ACT® to carry out such action or to provide such information (and shall meet ACT®'s reasonable costs in providing that information) before undertaking any such reduction.

THE AUTHORISED USER MUST MAINTAIN ALL COPYRIGHT NOTICES AND ACT®'S BRANDING ON ALL COPIES OF THE PRODUCTS.

Redistribution: This Agreement prohibits the Authorised User from redistributing or making available in any form to any third-party any part of the Products, including but not limited to text, images, models, applets, documents, icons and programmes, either for commercial or non-commercial purposes.

Registration: The Authorised User shall not register or make any application to register any of the Trade Marks or any other Intellectual Property right which incorporates any of the Trade Marks or Background IP (in whole or in part), or anything confusingly similar to any Trade Marks or Background IP, without ACT®'s written consent. ACT® shall be, in its absolute discretion, responsible for the application to register, maintenance and renewal of any Trade Marks, or any other Background IP right subject to registration, in any territory and file any

additional trademark applications featuring or related to the Trade Marks or the Products.

Representations: The Authorised User shall not make any representations or undertake any acts which indicate that the Authorised User has any right, title or interest in or to the Trade Marks or any other Background IP or the Developed IP, other than under the terms of this Agreement and the relevant Licence.

3. DEVELOPED IP:

Ownership: All Developed IP that arises, is obtained or developed from the use of the Products (in whole or in part), in connection with the relevant Licence, shall be fully or partially assigned – as set out in the relevant Licence – to ACT® by the Authorised User with full title guarantee.

Related IP: If the Authorised User acquires or develops any designs, copyright or any other Intellectual Property rights featuring any part of the Background IP which may be suitable for use on or in relation to the Products ("**Related IP**"), the Authorised User shall immediately notify ACT®. The Authorised User acknowledges and covenants that all Related IP shall automatically become part of the Developed IP for the purposes of this Agreement and the relevant Licence.

Use: This Agreement grants to the Authorised User the right to use any Developed IP solely for the purposes for which the relevant Licence is granted. AT NO TIME MAY THE AUTHORISED USER GIFT OR OFFER FOR RESALE, LEASE, LICENCE OR REDISTRIBUTE ANY DEVELOPED IP, TO ANY THIRD-PARTY OR SUPPLIER OR CUSTOMER OR ANY OTHER COMMERCIAL CONTACTS OF THE AUTHORISED USER, WITHOUT THE PRIOR CONSENT OF ACT®.

Obligations: The Authorised User shall use reasonable endeavours to procure that, so far as is legally permissible:

(a) all Developed IP generated by (i) any employees or sub-contractors of the Authorised User or (ii) any other person engaged by the Authorised User in any project involving the use of the Products from which Developed IP derives ("**Sub-contractors and Others**"), shall vest in or be assigned to the Authorised User with full title guarantee;

(b) all Sub-contractors and Others execute and do all acts and things reasonably necessary for the purpose of paragraph (a) above; and

(c) disclose all Developed IP in writing to ACT® promptly after they have been created it.

The Authorised User shall use its reasonable endeavours to protect the Developed IP and to maintain such protection.

The Authorised User shall not disclose any unpublished Developed IP without the prior written consent of ACT®, not to be unreasonably withheld or delayed; and consult with ACT®, sufficiently in advance for ACT® to comment, as to the desirability of applying for registration in respect of any of the Developed IP in reasonable time before publication or use of the Developed IP in question.

Registration: If any such Developed IP rights are registrable, both ACT® and the Authorised User shall be responsible for the filing and prosecution of applications for registration and for the maintenance and renewal of any such registrations in any applicable countries. The costs and expenses of such actions shall be bore either solely by ACT® or jointly by ACT® and the Authorised User in the same share percentage set out in the relevant Licence in which they hold an interest in such Developed IP rights, as applicable. The Authorised User shall co-operate in the provision of all necessary assistance and information.

4. BACKGROUND IP AND OTHER INTELLECTUAL PROPERTY:

Products' Ownership Rights: The Products are protected by copyright and other intellectual property laws and treaties. You agree that the Products and the authorship, systems, ideas, methods of operation and other information contained in the Products, are proprietary intellectual properties and/or the valuable trade secrets of ACT® and/or its licensors and are protected by civil and criminal law, and by the law of copyright, trade secret, trademark and patent of the United Kingdom, other countries and international treaties. You may use the Background IP only insofar as to the specific purposes set out in the relevant Licence. Such use of any Background IP does not give you any rights of ownership in them. ACT® and/or its licensors own and retain all right, title, and interest in and to the Products and Background IP, including without limitations any error corrections, enhancements, updates or other modifications to the Products, whether made by ACT® or by any third party, and all copyrights, patents, trade

secret rights, trademarks, and other Intellectual Property rights therein. No Intellectual Property rights on the Products are assigned or transferred by virtue of this Agreement. You acknowledge that the relevant Licence only provides you with a right of limited use under the terms and conditions of this Agreement.

Third-party infringement of the Background IP or Developed IP: The Authorised User shall immediately inform ACT® if it becomes aware of any infringement or potential infringement of any of the Trade Marks, Background IP or Developed IP in the Territory, including any activity or proceedings commenced in which the ownership, validity or registration of the Trade Marks, Background IP or Developed IP is called into question ("**IP Infringement**").

ACT® shall have the exclusive right (but is not obliged) to take action against or to settle with such third party in relation to an IP Infringement at ACT®'s cost and expense.

If ACT® decides not to take action in respect of an infringement of any of the Background IP or Developed IP, it shall notify the Authorised User and the Authorised User shall be entitled, at its cost, to take action as it thinks fit in respect of the IP Infringement. ACT® shall at the Authorised User's expense give the Authorised User all such assistance as it may reasonably require in connection with such action. The Authorised User shall continue to keep ACT® informed of the action and shall not settle any such action without the prior written consent of ACT® (not to be unreasonably withheld or delayed).

ACT® consents to the use of its name by the Authorised User in any such proceedings provided that, if ACT® does not participate in the proceedings, the Authorised User must indemnify ACT from and against all losses, damages, liabilities, costs (including legal fees) and expenses incurred by ACT® pursuant to the inclusion of ACT® in such proceedings.

Any proceeds resulting from an IP Infringement action related to Developed IP, including but not limited to settlement sums, shall either belong solely to ACT® or shared between ACT® and the Authorised User in the same share percentage in which they hold an interest in such Developed IP rights (as applicable), after reimbursing ACT® for any reasonable expenses incurred in undertaking or assisting in such action.

Infringement of third-party rights – Background IP: If any notice of infringement or other notification is received by the Authorised User, or any action or claim is brought against the Authorised User, alleging that the Authorised User has infringed any third-party rights by using the Background IP, the Authorised User shall:

(a) promptly provide full details to ACT®;

(b) at ACT®'s request and expense, allow ACT® complete control over any such proceedings or settlement negotiations; and

(c) provide ACT® with all information and assistance as reasonably requested by ACT®.

ACT® shall indemnify the Authorised User from and against all losses, damages, liabilities, costs (including legal fees) and expenses incurred by the Authorised User arising from any claim that the Authorised User's exercise of any right granted under this Agreement infringes any Intellectual Property rights belonging to a third party.

ACT® shall have no obligation or liability (and any indemnity granted by ACT® under this Agreement shall not be applicable) where the infringement or alleged infringement arises out of: (i) the use or dealing with the Background IP by the Authorised User in a manner in breach or outside the scope of the terms and conditions of this Agreement or the relevant Licence; (ii) materials created or materially amended by the Authorised User or its Sub-contractors and Others; or (iii) any other breach of this Agreement or the relevant Licence by the Authorised User or any activities of its Sub-contractors and Others outside of the scope of this Agreement or the relevant Licence.

This paragraph states the entire obligation and liability of ACT®, and the sole remedy of the Authorised User, in respect of any infringement or alleged infringement of the Background IP by the Authorised User's use of the Products.

Infringement of third-party rights – Authorised User IP: If the relevant Licence includes a mutual Licence for ACT to use the Authorised User's Intellectual Property ("**Authorised User IP**") either for the purposes of (i) a joint collaboration between the parties, (ii) the sole or joint development of Developed IP or (iii) ACT®'s own commercial purposes, each party shall immediately give

written notice to the other of any challenge to the Authorised User IP by a third party which comes to its knowledge.

The Authorised User shall, at its own expense, defend (or, at its option, settle) any action brought against ACT® which consists of a claim that the use of the Authorised User IP for any activity contemplated under the relevant Licence infringes any Intellectual Property right belonging to a third party. The Authorised User agrees to be responsible for, and to indemnify ACT® against, all losses, costs (including reasonable legal costs), damages, liabilities, claims and expenses suffered or incurred by ACT®in connection with any such claim. The Authorised User's obligations under this paragraph shall be conditional on ACT®:

a) immediately giving written notice to the Authorised User of such claim;

b) giving the Authorised User express authority to proceed as contemplated by this paragraph; and

c) providing the Authorised User with all such information and assistance as it may reasonably require.

In addition and without prejudice to the above, in the event that the use of the Authorised User IP for any activity contemplated under the relevant Licence infringes any Intellectual Property right belonging to a third party, the Authorised User shall, at its own expense, use its best endeavours either to modify the Authorised User IP to be non-infringing or to obtain, at its own expense, for the benefit of ACT®, a licence to continue using the affected part of the Authorised User IP. In the event that the parties reasonably agree that it is not possible either to modify the Authorised User IP to be non-infringing, or to obtain for the other parties a licence to continue using in full the Authorised User IP, then ACT® may terminate the relevant Licence and this Agreement, and all licences granted pursuant to either of them, immediately on written notice, and the parties shall co-operate with respect to an orderly termination of the same.

5. DATA COLLECTION STORAGE AND ANONYMISATION:

Collection: By using any computer software of digital Products, any information generated from such use ("Data") will be automatically gathered in the Products, as raw data, and securely stored in a private database within the digital Products,

which shall only be available to the Authorised User. ACT® may not access such private database except in the event that it is absolutely necessary to do so to fix any 'bugs' or errors in the digital Products, at the Authorised User's request.

Processing: The raw Data in the digital Products may be extracted, processed and analysed by the Authorised User in their own digital systems.

Data anonymisation: The Authorised User shall, at its own cost, (i) anonymise all Data gathered by the digital Products, or otherwise gathered and stored from the Authorised User's use of any other Products, and (ii) provide such anonymised Data to ACT®, within the first five days of each month, by uploading it into ACT®'s "Global Database", which contains anonymised raw data gathered from all assessments, projects and researches carried out globally by third parties using the Products. ACT® will provide guidance and training to the Authorised User on how to access and upload information into ACT®'s Global Database to comply with its obligation under this clause.

ACT® will transfer and collect the anonymised Data into "ACT® Insight®" software, which contains systematic analytics of the Global Database.

Ownership of anonymised Data: All Data, in anonymised form (thus excluding Personal Data) shall form part of the Developed IP and; therefore, the Authorised User covenants that all Intellectual Property and other rights, title, and interest in such anonymised Data belong solely and exclusively to ACT®.

Access: The Authorised User may access and use the Data gathered through its use of the digital Products at any time during the Term of the relevant Licence solely and exclusively for the purposes of and in connection with the Licence.

Access to the Global Database, ACT® Insight or bespoke data analytics services of ACT® are available to the Authorised User only if additionally requested by the Authorised User and granted by ACT® or an ACT® Partner in the relevant Licence.

6. PERSONAL DATA:

Definitions:
Data Protection Legislations: all legislation and regulatory requirements in force from time to time in the Territory and in the United Kingdom, as applicable

to each party, relating to the use of personal data and the privacy of electronic communications, including without limitation: (i) the Data Protection Act 2018 or any successor legislation, and (ii) the UK General Data Protection Regulation.

Capitalised phrases used in this clause 6 shall have the meanings attributed to them in the relevant Data Protection Legislations.

Responsibilities: Each party shall comply with its respective obligations, and may exercise its respective rights and remedies, under the relevant Data Protection Legislations, related to the activities each of them carry out in connection with the relevant Licence and or to fulfil their obligations under this Agreement and the relevant Licence, including but not limited to the collection, extraction and processing of Data as set out in clause 5 of this Agreement. ACT® AND THE AUTHORISED USER SHALL BEAR SEPARATE AND INDIVIDUAL RESPONSIBILITY FOR THEIR RESPECTIVE COLLECTION AND PROCESSING OF PERSONAL DATA UNDER THIS AGREEMENT AND THE RELEVANT LICENCE.

Role of the Authorised User: THE AUTHORISED USER WILL ACT AS BOTH DATA CONTROLLER AND DATA PROCESSOR OF ALL PERSONAL DATA GATHERED AND PROCESSED IN CONNECTION WITH THE EXERCISE OF THE RELEVANT LICENCE AND THEIR USE OF THE PRODUCTS, including, if applicable, any special categories of Personal Data related to any individuals assessed by the Authorised User using the Products ("**Subjects**"); and, the Authorised User shall bear all responsibility under the relevant Data Protection Legislations for such collection and processing of Personal Data.

Role of ACT®:
Digitised Products: All Personal Data gathered by the Authorised Users' use of the digital Products will be automatically stored in the digital Products hosted at ACT®'s cloud servers. ACT® will act as Data Sub-Processor only as to such automatic collection of Personal Data through its digital Products. ACT® does not exercise overall control over the purposes and means of the processing of Personal Data automatically collected in its digital Products from the use of the Authorised User, nor will it have access to or further process any such Personal Data.

Non-digitised Products: ACT® does not collect, store or process, or has access in any way to, Subject's personal data generated from the Authorised User's use

on non-digital Products, and shall therefore bear no responsibility for the Authorised User's collection, storage and/or processing of such personal data.

Obligations of the Authorised User: The Authorised User shall:

(a) only Process Personal Data in accordance with the relevant Data Protection Legislations;

(b) gather the explicit consent for collection and processing of Personal Data of each of the Subjects assessed through its use of the Products;

(c) preserve all such records of Subjects' consents for collection and processing for a period of at least five years and send them to ACT® upon written request;

(d) take appropriate technical and organisational measures against the unauthorised or unlawful processing of Personal Data, and the accidental loss or damage to Personal Data, as necessary to ensure the parties' compliance with all data protection principles applicable to each of them under the relevant Data Protection Legislations;

(e) not transfer the Personal Data outside the Territory, or to any third-party within the Territory, without complying with the requirements of the relevant Data Protection Legislations; and

(f) notify ACT® immediately if:

  (i) it suspects any Personal Data Processed under the relevant Licence has been lost, destroyed or corrupted, or if the Authorised User suspects any Personal Data has been Processed in breach of the relevant Data Protection Legislations;

  (ii) it becomes aware of any complaint (or possible complaint) about the Processing of Personal Data under the relevant Licence; or

  (iii) a Subject requests disclosure of his or her Personal Data.

THE AUTHORISED USER SHALL, AT ITS OWN EXPENSE, DEFEND (OR, AT ITS OPTION, SETTLE) ANY ACTION BROUGHT AGAINST ACT® RELATING TO: (I) THE

UNAUTHORISED OR UNLAWFUL PROCESSING OF SUBJECTS' PERSONAL DATA; (II) THE ACCIDENTAL LOSS OR DAMAGE TO SUBJECTS' PERSONAL DATA; OR (III) ANY LACK OF COMPLIANCE WITH THE RELEVANT DATA PROTECTION LEGISLATIONS RELATED TO SUBJECTS' PERSONAL DATA, ARISING OUT OF ANY BREACH OF THE AUTHORISED USER'S OBLIGATIONS UNDER THIS CLAUSE 6.

This clause 6 shall survive termination or expiry of this Agreement and the relevant Licence for any reason.

7. DISCLAIMER OF WARRANTY:

The Products are provided on an "AS IS" basis, without warranty of any kind, including without limitation the warranties of merchantability, fitness for a particular purpose and non-infringement. The entire risk as to the quality and performance of the Products is borne by the Authorised User.

The Authorised User must determine that the Products sufficiently meet the Authorised User's needs and requirements (including business and technical). This disclaimer of warranty constitutes an essential part of this Agreement.

8. LIMITATION OF LIABILITY:

UNDER NO CIRCUMSTANCES AND UNDER NO LEGAL THEORY, TORT, CONTRACT, OR OTHERWISE, SHALL ACT® BE LIABLE TO THE AUTHORISED USER OR ANY OTHER PERSON FOR ANY INDIRECT, SPECIAL, INCIDENTAL, OR CONSEQUENTIAL DAMAGES OF ANY CHARACTER INCLUDING, WITHOUT LIMITATION, DAMAGES FOR LOSS OF GOODWILL, WORK STOPPAGE, LOSS OF INCOME, COMPUTER FAILURE OR MALFUNCTION, OR ANY AND ALL OTHER COMMERCIAL DAMAGES OR LOSSES. IN NO EVENT WILL ACT® BE LIABLE FOR ANY DAMAGES IN EXCESS OF THE VALUE OF THE RELEVANT LICENCE FOR THE MONTH IN WHICH ANY DAMAGE MAY HAVE AROSED, EVEN IF ACT® HAD BEEN INFORMED OF THE POSSIBILITY OF SUCH DAMAGES ARISING, OR FOR ANY CLAIM BY ANY OTHER PARTY. THIS LIMITATION OF LIABILITY SHALL NOT APPLY TO LIABILITY FOR DEATH OR PERSONAL INJURY TO THE EXTENT APPLICABLE LAW PROHIBITS SUCH LIMITATION.

9. TERMINATION:

This Agreement will terminate automatically upon termination of the relevant Licence for any reason.

On termination, the Authorised User must delete any copies of the digital Products from all computers and servers onto which they were installed, and must destroy or return all copies of any Products in its possession or in possession of its Subcontractors and Others.

Termination of the relevant Licence and this Agreement shall be without prejudice to the rights of either party accrued at the date of termination.

10. MISCELLANEOUS:

This Agreement together with the relevant Licence, represents the complete agreement between the ACT® and the Authorised User concerning the use of the Products, and supersedes all prior agreements and representations between them.

Following acceptance, or deemed acceptance, of this Agreement by the Authorised User, this Agreement may only be amended by written agreement between both parties.

If any provision of this Agreement is held to be unenforceable for any reason, such provision shall be reformed by ACT® only to the extent necessary to make it enforceable.

11. LAW AND JURISDICTION:

This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales. The parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).

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